

Provided that the statement is-

- (a) made in reply to a question which is required by the Commissioner to answer ; or
- (b) relevant to the subject-matter of the inquiry.

Comment

Section 117 protects the person against civil or criminal proceedings in respect or any evidence given by him in an inquiry before the Commissioner.

118. Procedure, etc. - Any railway administration or the Commissioner conducting an inquiry under this Chapter may send notice of the inquiry to such persons, follow such procedure, and prepare the report in such manner as may be prescribed.

Comment

Section 118 deals with the notice of the inquiry the procedure to be followed and the preparation of the report.

119. No inquiry, investigation, etc. to be made if the Commission of Inquiry is appointed. - Notwithstanding anything contained in the foregoing provisions of this Chapter, where a Commission of inquiry is appointed under the Commissions of Inquiry Act, 1952 (3 of 1952) to inquire into an accident, any inquiry, investigation or other proceeding pending in relation to that accident shall not be proceeded with, and all records or other documents relating to such inquiry shall be forwarded to such authority as may be specified by the Central Government in this behalf.

Comment

Section 119 provides that no inquiry or investigation to be made if the Commission of inquiry is appointed under the Commissions of Inquiry Act, 1952 to inquire into any accident, etc.

120.- Inquiry into accident not covered by Sec. 113.- Where any accident of the nature not specified in Sec. 113 occurs in the course of working a railway, the railway administration within whose jurisdiction the accident occurs, may cause such inquiry to be made into the causes of the accident, as may be prescribed.

Comment

Section 120 provides for an inquiry by the railway administration in accidents other than those mentioned in clause 111.

121. Returns.-- every railway administration shall send to the Central Government, a return of accidents occurring on its railway, whether attended with injury to any person or not, in such form and manner and at such intervals as may prescribed.

Comment

Section 121 imposes an obligation on the railway administration to send return of accidents to the Central Government.

122. Power to make rules in respect of matters in this Chapter.--

(1) The Central Government may, by notification, make rules to carry out the purposes of this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :

- (a) the injury to property which shall be considered serious under Cl. (a) of sub-section (1) of Sec. 133;
- (b) the forms of notice of accidents to be given under Sec. 113 and the particulars of the accident such notices shall contain ;
- (c) the manner of sending the notices of accidents, including the class of accidents to be sent immediately after the accident;
- (d) the duties of the Commissioner, railway administration, railway servants, police officers and Magistrates on the occurrence of an accident ;
- (e) the persons to whom notices in respect of any inquiry under this Chapter are to be sent, the procedure to be followed in such inquiry and the manner in which a report or such inquiry shall be prepared ;
- (f) the nature of inquiry to be made by a railway administration into the causes of an accident under Sec. 120 ;
- (g) the form and manner of sending a return of accidents by a railway administration under Sec. 121.

Comment